

remainderman that part of the trust fund should be applied to prevent buildings on the settled estates from going to destruction, than that the whole should be laid out in the purchase of other lands (*b*), yet an extraordinary case was requisite to create such exception (*c*). [But where trustees having monies in their hands directed to be invested in lands to be strictly settled, entered into an agreement for purchase of an estate, but the farm buildings, and cottages on the property were out of repair, the Court sanctioned the application of 1000*l.* out of the monies in their hands in repairing, improving and rebuilding the farm buildings and cottages (*d*).

10. Under Settled Land Act.—Now by the Settled Land Act, 1882, sect. 26, the tenant for life may, with the approval of the trustees of the settlement, or the approval of the Court as the case may require, according as the money to be expended is in the hands of the trustees or in Court, expend any capital money arising under the Act in any of the improvements specified in sect. 25, of the Act (*e*).

And as under sect. 59, an infant entitled in possession to land is for the purposes of the Act to be deemed tenant for life thereof, and by sect. 60, the powers of an infant tenant for life may be exercised on his behalf by the trustees of the settlement, or if there are none by the nominees of the Court, all proper improvements may be effected "under the Act, notwithstanding the infancy of the beneficial owner.

11. Generally.—Independently of the powers of the Settled Land Act] a trustee holding an estate for the benefit of a person absolutely entitled, but incapable from infancy or otherwise to give directions, may make necessary *repairs*, but he must not go beyond the necessity of the case, as by *ornamental improvements*, or the expense will not be allowed (*f*). The trustees of a will were to permit the testa-

(*b*) *Caldecott v. Brown*, 2 Hare, 145, *per* Sir J. Wigram; and see *Re Barrington's Estates*, 1 J. & H. 142.

(*c*) *Dunne v. Dunne*, 3 Sm. & G. 22; *Dent v. Dent*, 30 Beav. 363.

[(*d*) *Lord Cowley v. Wellesley*, 46 L. J. N. S. Ch. 869.]

[(*e*) As to payment out of capital money for improvements under the Agricultural Holdings (England) Act, 1883, see s. 29 of the Act, and *ante*, p. 563.]

(*f*) *Bridge v. Brown*, 2 Y. & C. C. 181; and see *Attorney-General v.*